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روژنامه‌ى فهرمى كوّمارى عىراق



تصدر عن وزارة العدل

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Legislation

No. 29

Food Regulation

With its Amendments

No (29) 1982

نظام الأغذية مع تعديلاته

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In The Name of people

Presidency of Republic

In accordance with the provisions of Paragraph (a) of Article (57) of the Provisional Constitution and Article (105) of the Public Health law No.(89) of 1981;

The following regulation has been promulgated:

No (29) 1982
Food regulation
Chapter One

Article 1

The following expressions have the meanings indicated next to them:

First: The Minister: Minister of Health.

Second: The Competent Health Authority: The Minister or whomever he/ she authorizes.

Third: The laboratory: Central Public Health Laboratory, nutrition research institute or any laboratory determined by competent health authority.



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Fourth: The authorized employee: The qualified person authorized by the competent authority for the purpose of taking the samples, sending them to the laboratory, receiving the results of the examination AND analysis and taking the procedures stipulated in this regulation.

Fifth: Food: Each substance is handled for human consumption as food in its solid, semi-solid or liquid form, gum, syrup, drinking water, ice or any ingredients used in preparing food and this does not include drugs, medicines, cosmetics and food additives.

Sixth: Food additives: Substances that make, preserve or improve the taste and flavor or that fix texture, emulsions and other foodstuffs that are intentionally added to food to improve their natural properties or for the purposes of manufacturing, preparing, packaging, transporting or preserving them which is not considered as a nutritional foodstuff in themselves, and not considered as a natural component of any nutritional foodstuff, whether they have a nutritional value or not. In all cases, these additives must not be harmful to public health, and the competent health authority may issue statements specifying these substances and the conditions for their use.

Seventh: Food unfit for human consumption:

- a. If it is harmful to public health, which includes:
 1. Food contaminated with pathogens and their agents, such as microbes and parasites or their toxins.
 2. Food contains toxic substances or pesticides that harm human health in a percentage exceeding the amounts determined by the competent health authority.
 3. Food whose packaging contains substances harmful to public health.



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4. Food contains additives are not permitted to use or exceed the prescribed limits.
 5. Food resulting from an animal sick with a disease transmitted to humans or from a dead animal.
 6. Food mixed with impurities that cannot be purified to the proportions approved by the competent health authority.
 7. Food exposed to pollution as a result of handling by a person who is sick with an infectious disease that is transmitted to humans through food or drink or is carrying their microbes.
 8. Food that contains hormones and drug residues that cause harm to public health.
 9. Genetically modified foods that cause illness and health harm.
 10. Food contaminated with the mad cow disease virus.
 11. Food contaminated with toxic chemical pollutants, such as dioxin, Benzo[e]pyrene, melamine and others.
 12. Any foodstuff proven to be harmful based on the international technical recommendations of the Codex Alimentarius Commission or that reported by the World Health Organization or the Food and Agriculture Organization and other the internationally recognized organizations.
- b. If the food is spoiled, decomposing or damaged, which includes:
١. Food whose structure or natural properties have changed in terms of taste, smell or appearance as a result of chemical or microbial decomposition or physical effects.
 ٢. Food which contains larvae, worms or insects in any of their life their stages, excreta or residues in proportions that exceed the amounts determined for them.
 ٣. Food that contains animal excreta or waste.
 ٤. Food that exceeds the period specified for its validity fixed on its packages.
 ٥. Food that is intended to hide its spoilage or damage in any way.



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٦. Food produced, in whole or in part, from spoiled, decomposing or damaged food elements, whether they are natural raw or processed.

Eighth: Food to be considered commercially adulterated includes:

- a. Using covers and packages of internationally, Arab or nationally displayed trademarks in promoting foodstuff that is less good and safe than the original foodstuff, with the intention of deceiving the consumer and achieving profit.
- b. Use non-sticky and removable labels as food product trademarks.
- c. The use of the local language exclusively without adding one of the international languages in listing the ingredients of the product, production and expiration date and batch number.

Ninth: Unhealthy conditions: The conditions that lead to contamination of food with physical, chemical or biological pollutants, which make it unfit for human consumption and a danger to public health, or food processing away from the supervision of the competent health authority.

Tenth: Food handling: Any process or more of food's production, preparation, manufacture, packaging, store, transport, sale or provision.

Eleven: Food handling places: Any fixed or non-fixed places with the land on it and adjacent to it used for food handling purposes, based on a license from the competent health authority issued in accordance with the Public Health Law.

Twelfth: Worker in food: Whoever performs any work related to preparing food, drink, ice, drinking water or food handling, whether in a fixed or mobile place, in accordance with the controls and conditions related thereto stipulated in the Public Health Law.



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Thirteenth: Preparation: The process of producing, treating or preparing food in accordance with the requirements of the approved specifications for each foodstuff and in accordance with the general rules of food safety affairs.

Fourteenth: Informative label: Every statement, clarification, phrase or form written, printed or affixed to a food packaging or related thereto, and shall be determined by the specifications approved by the competent health authority.

Fifteenth: Package: Any envelope used to completely or partially packing or canning food in any form, whether open or closed.

Sixteenth: Advertising: Any form of display and in any manner aimed at direct and indirect promotion of food.

Seventeenth: Sale: For the purposes of this law, any process of importing, exporting, displaying, advertising, storing, transporting, delivering, packing, exchanging or acquiring food with the intention of selling shall be considered a sale.

Eighteenth: Means of transport: Any way or means of transport that suits the purpose used for it in accordance with the approved health conditions.



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Chapter Two Specifications and Advisory Body

Article 2

First: The specifications issued by the Central Organization for Standardization and Quality Control on food shall be reliable basis for food control.

Second: When national standards are not available, the competent health authority may adopt Arab or international standards issued by Arab or international specialized organizations.

Third: When national, Arab or international specifications are not available, the competent health authority shall determine the requirements that must be met in food in cooperation with the Central Organization for Standardization and Quality Control or any other competent authority, and these requirements shall be published in the Official Gazette.

Article 3

First: The minister shall establish a food advisory body to carry out the works he/ she assigns to it.



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Second: The advisory body consists of scientific, technological, administrative and economic members with experience and specialization in food production, distribution and consumption, who shall be nominated from the relevant departments appointed by the Minister.

Third: The body may form specialized scientific committees that work under its supervision to study specific topics related to food specifications and their suitability for human consumption.

Fourth: The body shall submit a report to the minister from time to time, and the minister may decide on the publication of these reports in the available media.

Fifth: The departments represented in the Food Advisory Body shall be obligated to implement the decisions issued by them after they are approved by the Minister.



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Chapter Three General provisions

Article 4

First: Sale or handling of food shall be forbidden if it is harmful to public health, spoiled, decomposing, damaged, or deceitful.

Second: Sale or handling of food that is provided with unhealthy methods and conditions or packaged food that is not carrying the informative label shall be forbidden.

Third: Sale or handling of food in food handling places that are prevented from this by an order from the competent authority shall be forbidden.

Article 5

The competent health authority shall undertake the duties of food control throughout the country in accordance with the provisions of the Public Health Law, this regulation and the instructions issued pursuant to them.

Article 6

First: The authorized employee at any time he/ she deems appropriate may exercise the following powers:



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- a. Entering any place that he/ she believes that a foodstuff covered by this regulation is prepared, preserved, packed, wrapped, stored in it or transported from or to it, and he/ she may examine this foodstuff and take samples from it, and may examine anything that he/ she believes used or can be used for the purposes of preparing, preserving, canning, packaging, storing or transporting the foodstuff covered by this regulation.
- b. Reviewing the documents and records in the place mentioned in Paragraph (a) of this Item, and he/ she may copy this information from them and take a summary of them.
- c. Opening and checking any container or package believed to contain foodstuff covered by this regulation.
- d. Stopping, searching and seizing the means of transport that is believed to carry a foodstuff covered by this regulation and he/ she may examine this foodstuff and take samples from it for the purpose of implementing its provisions.
- e. Seizing any foodstuff believed to violate the requirements of this regulation or waiting for the result of laboratory examination or destroying it in accordance with the provisions of the Public Health Law.

Secondly: The authorized employee shall show his/ her ID that entitles him/ her to the powers stipulated in Item (First) of this Article when exercising them.

Thirdly: It shall be considered contrary to the provisions of this regulation:

- a. The owner, occupant, or person responsible for any place or person present in it if he/ she refuses to allow the authorized employee to enter this place or to assist him/ her to the extent possible or to provide him/ her with the information available.
- b. Whoever prevents or impedes the authorized employee in performing his/ her duty or attempts to prevent him/ her from implementing it.
- c. Whoever intentionally submits wrong or misrepresented information to the authorized employee.



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Article 7

First: When the authorized employee seizes a food item, he/ she shall follow the following:

- a. Referring the suspected food item to the laboratory for the purpose of knowing its suitability for human consumption.
- b. Storing the seized food item in the same location in which it has been seized, or transferring it to another location that meets the required storage conditions after obliging the food item's owner not to dispose of it until the results of the examination and analysis appear in accordance with a regular record.
- c. Submitting any food item or sample taken by him/ her to the laboratory for analysis and examination within a period not exceeding (24) twenty-four hours for fast perishable foodstuffs, provided that it is transferred by the regular methods.

Second: The authorized employee shall lift the seizure and allow handling any food item that is seized in accordance with the provisions of this regulation, after the appearance of the laboratory test results that confirm that it does not violate the requirements of its provisions within (48) forty eight hours.

Third: Anyone who remove or alters the seized foodstuff or interferes to do so in any way without official authorization, he/ she shall be considered as violating the provisions of this regulation.

Article 8

First: In case that the laboratory test results appear that the foodstuff is not fit for human consumption, the competent health authority shall take what is necessary to destroy it in accordance with the Public Health Law and refer the violator to judiciary.



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Secondly: In case that the results of laboratory tests show that the foodstuff is adulterated, it shall be forbidden to be handled and the violator shall be referred to the judiciary. The foodstuff may be destroyed or disposed of in the manner decided by the court based on the experience of the competent health authority.

Third: The authorized employee or laboratory employee may not have any relationship, interest or work in handling this foodstuff.

Article 9

The laboratory shall analyse or examine any sample taken to ensure its suitability for human consumption or not as soon as possible, and use the scientific measures that ensure this, whether those measures are national or international to achieve the necessary extent to protect human health and food safety.

Article 10

First: Whoever trades any foodstuff used in food handling shall provide the Competent Health Authority with the information it requires related to that foodstuff in accordance with instructions issued for this purpose.

Second: The competent health authority may not disclose any information supplied based on the request stipulated in Item (First) of this Article.

Article 11

The contents of the package in their original form prepared by the producer shall be in conformity with the indication of contents shown on the informative label, otherwise, the product shall not be allowed to be entered, and it shall not be granted the health certificate and



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health reservation license, those confirm the validity of the product for human health and food safety.

Article 12

- First: Each package contains a foodstuff covered by the provisions of this system and bears the name of the producer or the packer, his/ her address or his/ her registered trademark shall be a legal presumption that this foodstuff is produced or packaged by him/ her, unless proven otherwise.
- Second: Every foodstuff found in the food handling places that is used normally for human consumption shall be considered as prepared, displayed or isolated for the purpose of selling for human consumption, unless proven otherwise.
- Third: Every foodstuff found in food handling places that is included in the composition or preparation of a foodstuff that is normally used for human consumption shall be considered existing for this purpose.
- Fourth: The examination certificate issued by the laboratory or authorized employee shall be considered a sufficient legal evidence for the requirements of this regulation.
- Fifth: The presence of the health certificate does not prevent the authorized employee from carrying out supervision and inspection and taking a sample to examine the product upon entering the Iraqi territories, and upon confirmation of the validity of the product, it shall be granted a health certificate by the competent health authority.
- Sixth: The competent health authority shall publish information about foodstuffs unfit for human consumption via various media, in order to warn citizens against their use.



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Chapter Four Final provisions

Article 13

Instructions may be issued to facilitate the implementation of the provisions of this regulation.

Article 14

This regulation shall be implemented from the date of its publication in the Official Gazette.

Written in Baghdad on the fourteenth day of the month of Rabi` al-Awwal of 1403 AH; Coinciding the twenty-ninth day of December of 1982 AD.

Saddam Hussein

President of the Republic